

1603
May 18
Justices of
the Peace
are deter-
mined, con-
stables and
coroners
continue
Queen Eliza-
beth devised
the crown to
King James,
by parol

raunte dothe suppose, vntill the ceremonie of coronation), by reason of his lineall discente; yet Justices of peace are determyned, but Constables & Coroners, & suche pettie officers, remaine still: & the verye instaunte that the breathe was oute of her Ma^{tie's} bodye, Kinge James was lawfull & rightfull kinge: & the Secretarye sayde that her late Ma^{tie} in her laste sicknes did deuyse yt vnto him by parolle.¹

Qui pietate seditiosus est leuiter pius est vita anteacta.

Recusants
are simple or
dangerous

'For recusants, the Lo. Keper sayd, some are simple & lede by error; those he pittyed & was not forwarde to punishe: others daungerous, wilfull & seditious, as Carewe is one of them.

Our religion
as ancient as
Jesus
Christ

'For o^r religion, it began wth *Consumatum est*, and is as auncient as Jesus Christe.'

In hoc leges seruiunt Christo quod leges fiant pro Christo.

Judgment
*secundum
delictum*

Relation to
the King of
causes and
motives to
mercy
[p. 127]

The King
commits
justice but
keeps mercy
Eyes of flesh,
and eyes of
judgment
This Court
hath warrant,

'The secretarye sayde that there iudgemente must be accordinge to the offence, not weyghinge his estate, *saluo contenmento suo*; but it is parte of there honor to relate to his Ma^{tie} the cause & occurrences to moue him to mercye: & the Lo. Keper he sayde that the Kinge Committes to them his iustice, but keepes to himselfe his mercye: & that he lookes vpon no man wth the eies of mallice or of fleshe, but wth the eies of his Judgemente: And that this Cowrte hath aunciente warraunte & authoritie bothe by Common

Justice
ordinary or
extra-
ordinary
Council of
State war-
ranted by
statute

Fine 1,000*l.*,
imprison-
ment during
pleasure,
recognition
of his fault
in church and

of common and statute law, to proceed on confession *ore tenus* & statute lawe to proceede in this kinde, 10 E. 2 [?] and 12 R. 2. For the kinge's Justice is ordinarie or extra-ordinarie: & to proceede at the discretion of his Ma^{tie's} Counselle of state is extraordinarye, & warranted by statutes.

The Court
differs as to
the fine: the
greater
number is
the sentence

'The greater opinion of the Cowrte was to be fined 1000^{li}, imprisonmente during the king's pleasure, recognition of his faulte in the church & at the Assises: & to be bounde to his good behauyoure: but Sr John Fortescue, Justice Gawdy, *L'archeuesque* et Lord Keper, fine 3000^{li},' but this did not alter the sentence of the Court.

¹ See *post*, p. 177, and Appendix XI.